

Title Report - Buyer - commitment should work

Title Insurance Report: Plain Language Overview

675 Bunker Hill Road, Columbia, MS

Executive Summary

Current Status: ?? NOT READY TO CLOSE

Your purchase of this property cannot proceed to closing at this time due to a critical problem with the deed recording. While most aspects of the title are in good order, there is one major issue that must be fixed immediately, plus a few other items that need clarification.

Overall Title Readiness Score: 67/100

Property Information

Detail	Information
Address	675 Bunker Hill Road, Columbia, MS 39429-7832
County	Marion County, Mississippi
Parcel Number	074-04-000-04-005
Size	88 acres
Property Type	Land with improvements
Assessed Value	\$9,030

Who's Involved

Party	Role
You (Kyla B. Fortenberry)	Buyer
Terri G. Crawley	Listed as Seller
Garner Tree Farm, LLC	Current Legal Owner
Society Mortgage	Your Lender
Old Republic National Title Insurance Company	Title Insurance Company

The Main Problem: CRITICAL ISSUE ?

Wrong Names on the Deed

What happened: A deed was recorded on January 13, 2026, but it names the wrong people as the new owners. The deed says the property is being transferred to Christopher Lane Thornhill and Sara E. Jackson, not to you (Kyla B. Fortenberry).

Why this matters: This is a complete blocking issue. The title company cannot issue your insurance policy because the property is not legally in your name according to the recorded documents.

What needs to happen: A new deed must be recorded immediately that correctly names you as the buyer. This deed must come from Garner Tree Farm, LLC (the current legal owner) and transfer the property to you.

Secondary Issues That Need Resolution

1. Owner Name Confusion (Medium Priority)

The issue: The records show two different people/entities as the owner:

- Garner Tree Farm, LLC = The legal owner according to the title records
- Terri G. Crawley = Listed as the seller

Why it matters: We need to confirm that Terri G. Crawley has the authority to sell on behalf of Garner Tree Farm, LLC. (Note: Terri Garner Crawley is actually a member of the LLC, so this may be legitimate, but it needs to be documented.)

What needs to happen: The seller must provide documentation showing that Terri G. Crawley is authorized to represent Garner Tree Farm, LLC in this transaction.

2. Mineral Rights Overlap (High Priority)

The issue: The title commitment lists mineral rights restrictions in two different places (Exceptions 1 and 8), and they say similar things. This creates confusion about exactly what mineral rights are reserved.

What we know: The deed clearly states that all oil, gas, and other minerals are being kept by the seller and are NOT included in your purchase. This is normal for this type of property.

What needs to happen: The title company needs to consolidate these two exceptions into one clear statement so there's no ambiguity about what you're actually getting.

Required Documentation from the Seller

Before closing can happen, the seller must provide:

- ? LLC Operating Agreement -- The rules that govern how Garner Tree Farm, LLC operates
- ? Good Standing Certificate -- Proof that the LLC is in good standing with the State of Mississippi
- ? Member Authorization -- A signed document from all LLC members approving this sale
- ? Corrected Deed -- A new deed recording the property in your name

What's Already in Good Order ?

The following items have been verified and are not a problem:

Item	Status
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No open mortgages on the property	? Clear
No bankruptcy filings	? Clear
Property taxes current	? Paid (\$1,132.52 for 2025)
Utility easements (VYVX, Inc.)	? Standard, acceptable
Water line easement (Bunker Hill Water Association)	? Standard, acceptable

Exceptions (Restrictions on the Property)

These are standard restrictions that will appear on your title insurance policy:

1. Mineral Rights Reserved -- The seller is keeping all oil, gas, and mineral rights. You own the surface only.
2. Utility Easements -- Two utility companies have the right to access the property for their lines:
 - VYVX, Inc. (recorded 1997)
 - Bunker Hill Water Association (recorded 2009 and 2023)
3. Standard Exceptions -- These are typical items that appear on all policies (survey issues, tax liens, etc.)

Bottom Line: These exceptions are normal and should not affect your use of the property.

What Happens Next: Action Items

Immediate (This Week)

1. Seller must record a corrected deed naming you as the buyer

2. Seller must provide LLC documentation:

- Operating agreement
- Good standing certificate
- Member authorization resolution

Once Documents Are Received

3. Title company will review all documents
4. Mineral rights exceptions will be consolidated
5. Final title commitment will be issued

At Closing

6. Your lender's deed of trust will be recorded
7. Title insurance policies will be issued
8. You will receive your title insurance protection

Timeline Estimate

- Current Status: Blocked from closing
- With corrected deed and LLC docs: 5-7 business days to clear
- Estimated Ready to Close: Within 2 weeks (pending seller cooperation)

Bottom Line for You

The good news:

- The property itself has a clean title
- No major liens or claims against it
- The easements are standard and acceptable
- Your lender is ready to proceed

The bad news:

- The deed was recorded to the wrong people
- This must be corrected before you can close
- This is the seller's responsibility to fix

Your next step: Contact your real estate agent or attorney immediately to notify the seller that a corrected deed must be recorded right away. This is not a minor issue--it completely blocks the transaction until it's fixed.

Questions?

Contact your title company or real estate attorney if you need clarification on any of these items. The title company is:

Old Republic National Title Insurance Company

1200 E. Market Street, Suite 751

Akron, OH 44305-4024

Commitment Number: 01-26006219-01T